



**Order under Section 78(11)
Residential Tenancies Act, 2006**

Citation: Pradhan v Gonsalves, 2025 ONLTB 94107

Date: 2025-12-10

File Number: LTB-L-088446-25-SA

In the matter of: 28 HIGHCOURT CRES
SCARBOROUGH ON M1H2L8

Between: Sonu Pradhan Landlords
Ruben Gurung

And

Elizabeth Gonsalves Tenant

Sonu Pradhan and Ruben Gurung (the 'Landlords') applied for an order to terminate the tenancy and evict Elizabeth Gonsalves (the 'Tenant') and for an order to have the Tenant pay the rent they owe because the Tenant did not meet a condition specified in the order issued by the LTB on June 30, 2025 with respect to application LTB-L-015992-25.

The Landlords' application was resolved by order LTB-L-088446-25, issued on October 29, 2025. This order was issued without a hearing being held.

The Tenant filed a motion to set aside order LTB-L-088446-25.

This motion was heard by videoconference on December 2, 2025.

The Landlords and the Tenant attended the hearing. The Tenant declined the opportunity to consult with Tenant Duty Counsel prior to the hearing.

Determinations:

1. The first issue before the Board is whether there was a breach of the order in respect of order LTB-L-015992-25 as alleged by the Landlords. The Tenant did not dispute she

breached the terms of the agreement. Specifically, she failed to pay the arrears payment of \$1,000.00 on or before September 26, 2025 and she failed to pay the monthly rent due on October 1, 2025.

2. This means I must determine, having regard to all the circumstances, whether it would not be unfair to set aside the eviction order pursuant to subsection 78(11)(b) of the *Residential Tenancies Act, 2006* (the 'Act').

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3. This tenancy began in July 202. The monthly rent is \$2,200.00 and is due on the first day of each month.
4. The Tenant testified that her breach of the order resulted from unforeseen complications with her partner's banking institution in the United States. She stated that Wells Fargo had assured her a transfer of \$15,067.00 would be deposited into her account on November 22, 2025. However, due to a missing signature, the transaction was delayed until at least December 5, 2025. The Tenant referenced a letter she received from Wells Fargo dated November 5, 2025, in which Account Officer Frank Matson confirmed the wire transfer was scheduled for November 22, 2025, while cautioning that potential delays could occur during the process.
5. The Tenant testified that she intends to ensure the Landlords receive the monies owed to them and requested a brief extension of time to secure the funds scheduled for transfer into her bank account.
6. The Landlords testified that they lack confidence the Tenant will remit the rent arrears even if the anticipated transfer is received. They stated the Tenant has been habitually late in paying rent and has failed to remit payment for October, November, and December 2025. The Landlords further explained that the arrears now exceed \$17,000.00 and asserted that any additional delay in terminating the tenancy would result in prejudice.

Analysis and Legislation

7. As there is no dispute that the Tenant breached the conditional order, the only issue before me is whether I am "satisfied, having regard to all the circumstances, that it would be unfair to set aside the order". For the following reasons, I find that it would be not unfair to set aside the order.
8. The Board's expectation is that orders on consent will be complied with by the parties. The purpose of subsection 78(11)(b) of the Act is to provide for the possibility of relief from eviction where there has been a breach of a mediated agreement or order but there are extenuating circumstances to consider. The Board is usually interested in knowing whether or not the breach was unavoidable, or a result of events beyond the tenant's control. It is

also interested in whether or not the tenancy is viable as there is no point in continuing a tenancy where future breaches are inevitable.

9. The Act is remedial legislation, and the courts have determined that evicting a tenant is a remedy of last resort. In the cases of *Sutherland v. Lamontagne*, [2008] O.J. No. 5763 (Div. Ct.) and *Paderewski Society v. Ficyk*, [1998], the Divisional Court stated, "to put somebody out of their home must, in my view, call for clear and compelling circumstances that it's no longer possible for the arrangement to continue."
10. The termination of a tenancy is a remedy of last resort and relief should be granted where the tenancy can be saved without overly prejudicing a landlord's interests.
11. I accept the Tenant's evidence that the rent arrears owing will be paid to the Landlords and in my view, a short delay will not cause undue prejudice to the Landlords.

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12. Pursuant to section 204 of the Act, the Board has the power to order any decision that it deems fair in the circumstances. I find that in this case, it would be fair to provide the Tenant with a short delay to receive the expected funds and pay the full amount owing to the Landlords.
13. At the hearing, the Tenant was informed that all rent arrears owing for the period ending December 31, 2025 must be paid to the Landlords on or before December 9, 2025, and if the payment is not made by this date, the Landlords will have the legal right to file this order with the Court Enforcement Office (Sheriff). In consideration of the date of this order, the Tenant shall be given until December 10, 2025 to pay the full amount owed to the Landlords.
14. As a result, the Tenant's motion is granted. An order shall issue accordingly.

It is ordered that:

1. The motion to set aside Order LTB-L-088446-25, issued on October 29, 2025, is granted.
2. Order LTB-L-088446-25, issued on October 29, 2025, is set aside and cannot be enforced.
3. The previous order issued on June 30, 2025, with respect to LTB-L-015992-25, is cancelled and replaced with the following order.
4. On or before December 10, 2025, the Tenant shall pay to the Landlords \$17,200.00* which represents the rent arrears and costs owing to December 31, 2025.
5. If the Tenant fails to comply with paragraph 4 of this order, the Landlords may file this order with the Court Enforcement Office (Sheriff) on December 11, 2025 so that the eviction may be enforced.

6. Upon receipt of this order, the Court Enforcement Office (Sheriff) is directed to give vacant possession of the unit to the Landlords on or after December 11, 2025.
7. If the Tenant does not pay the Landlords the full amount* owing on or before December 10, 2025, the Tenant will start to owe interest. This will be simple interest calculated from December 11, 2025, at 4.00% annually on the balance outstanding.

December 10, 2025
Date Issued

Susan Priest
Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor Toronto
ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.

In accordance with section 81 of the Act, the part of this order relating to the eviction of the Tenant expires on July 11, 2026 if the order has not been filed on or before this date with the Court Enforcement Office (Sheriff) that has territorial jurisdiction where the rental unit is located.